

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

PROTOCOL REGARDING ELECTRONICALLY STORED INFORMATION

1. Definitions

The following definitions apply to this protocol:

A. **“Custodian”** means a Person or resource (*e.g.*, a shared file server) who had custody of information or a Document prior to collection for production.

B. **“Document”** has the broadest meaning permitted by the Federal Rules of Civil Procedure and includes, without limitation, all electronically stored information, originals, copies (if the originals are not available), non-identical copies (whether different from the original because of underlining, editing marks, notes made on or attached to such copy, or otherwise), and drafts of the following items, whether printed or recorded (through a sound, video or other electronic, magnetic or digital recording system) or reproduced by hand, whether or not claimed

to be privileged or confidential, including but not limited to letters, correspondence, telegrams, telexes, memoranda, records, diaries, summaries of personal conversations or interviews, expressions or statements of policy, lists of persons attending meetings or conferences, reports or summaries of meetings, minutes or records or notes of meetings or conferences, reports or summaries of investigations, opinions of counsel, reports or summaries of either negotiations within or without the corporation or preparations for such, note pads, notebooks, postcards, “Post-It” notes, stenographic notes, notes, notebooks, opinions or reports of financial advisors or consultants, opinions or reports of experts, projections, financial or statistical statements or compilations, contracts, agreements, appraisals, analyses, purchase orders, bills of sale, confirmations, publications, articles, books, pamphlets, circulars, microfilm, microfiche, reports, studies, logs, surveys, reports to stockholders, instruments, press releases, drafts of any document, accounts, diaries, calendars, appointment books, maps, charts, graphs, bulletins, photostats, speeches, brochures, manuals, data sheets, pictures, photographs, illustrations, blueprints, films, drawings, plans, tape recordings, videotapes, disks, diskettes, data tapes or readable computer-produced interpretations or transcriptions thereof, electronic communications including but not limited to email and/or text messages, voice mail messages, telegraphic messages (e.g., SMS, WhatsApp, WeChat), faxes, interoffice communications (e.g., Slack, Microsoft Teams, Google Chat), advertising, packaging and promotional materials and any other writings, papers and tangible things of whatever description whatsoever, including but not limited to any information contained in any computer, server, mainframe, cloud application, or other storage device (including (i) information on or in computer memory), whether located on-site or at an off-site facility, within Your possession, custody or control. Any comment or notation appearing on any

document, and not a part of the original text, is to be considered a separate “document.” “Documents” or “document,” for the avoidance of doubt, includes ESI.

C. **“ESI” or “Electronic Document”** refers to information stored in electronic form including word processing files (*e.g.*, Microsoft Word), computer presentations (*e.g.*, Microsoft PowerPoint), spreadsheets (*e.g.*, Microsoft Excel) and email, together with the available metadata associated with each such Document.

D. **“Producing Party”** means any Party to the above-captioned Action, or any non-party, who produces Documents or information under this Agreement.

E. **“Receiving Party”** means any Party to the above-captioned Action who receives Documents or information under this Agreement.

2. Production Format

Documents shall be produced as provided as follows:

A. **De-duplication.** The Producing Party may use industry standard methods to globally de-duplicate all files identified for production. Loose Electronic Documents shall not be compared to email attachments for de-duplication purposes. Hard copy Documents containing handwritten notes shall not be considered as duplicative of any other Document.

B. **Email Threads.** When producing emails, the parties may produce only the longest (most inclusive) unique iteration of each email thread, provided however that all lesser portions of the thread that contain unique data (such as an attachment) are also produced.

C. **Production Delivery.** Productions shall be delivered via FTP, or another secure data transfer method.

3. Documents Protected from Discovery

A. Documents or Document “families” that contain both privileged and non-privileged information shall be produced with the privileged information redacted in such a way as to show the location of the redaction within the Document, or replaced with a placeholder file if the document does not contain non-privileged information. For any document redacted in any part, no privilege-log entry is required beyond the visible label “Privileged” or “Work Product.” Any document withheld in full shall be included on a privilege log with author, recipients, date, and privilege basis.

4. Limitations and Non-Waiver

Pursuant to Fed. R. Evid. 502, the inadvertent or otherwise disclosure or production of a privileged or work product-protected documents, electronically stored information, or information, is not a waiver of privilege or protection from discovery in this case or in any other federal or state proceeding, and the Parties agree to seek a Rule 502(d) Order from the ALJ. This Order shall be interpreted to provide the maximum protection allowed by Federal Rule of Evidence 502(d). Nothing contained within this paragraph is intended to or shall serve to limit a party’s right to conduct a review of documents, ESI, or information (including metadata) for relevance, responsiveness, confidentiality, and/or segregation of privileged and/or protected information before production.

5. Inadvertent Production of Privileged Information

If a Party inadvertently produces electronically stored information (ESI) that is privileged (such as attorney-client privilege or work product), they must promptly notify the receiving Party in writing upon the discovery of the inadvertent production and identify any documents that were inadvertently produced. The receiving Party should then return all copies of the inadvertently produced documents within 3 business days. The receiving Party agrees not to use this information

in the litigation unless permitted by a court order. The Party that produced the information should keep unaltered copies of the returned materials. Returning the documents under this protocol does not affect either Party's rights regarding the waiver of privilege. If there is a dispute about whether the returned ESI is privileged, the Parties should first meet and confer to try and resolve it before involving the court.

6. Litigation Hold Notices

The Parties agree that they need not exchange the text of litigation hold/retention instructions issued for this litigation.

7. Translations

The Parties agree that they may rely upon artificial intelligence (“AI”) or other available technological tools to translate documents in the first instance. If one or both Parties require a certified translation of any document or material, that Party may arrange and pay for a certified translation and, in the event of conflict between the AI translated document and the certified translation, the certified translation shall prevail.

THE PARTIES HEREBY AGREE TO THE ABOVE TERMS.

Dated: September 26, 2025

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